

22PSCV00208 22PSCV00208

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-08-27

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Case Number: 22PSCV00208 Hearing Date: August 27, 2026 Dept: O

Tentative Ruling

Plaintiff's

Application for Entry of Default Judgment is CONTINUED to Thursday, October 1,

2026 at 9 AM for supplemental briefing; the brief is due by Monday, 9/21/26.

Background

This

is a complaint for abatement, injunction, equitable relief, and civil penalties

arising from the alleged illegal marijuana cultivation.

On

March 4, 2022, Plaintiff the City of El Monte filed suit against Defendants

4610 Peck, LLC, Shu Qing Lao, and Xuefent Zhao.

On

August 25, 2023, Defendant 4610 Peck, LLC (the owner of the property) filed an

answer.

On

February 6, 2024, default was entered against Zhao.

On

March 31, 2024, default was entered against Liao.

On

May 14, 2024, a CMC was held wherein the parties stated they were in settlement

discussions and they believed the matter would resolve.

On

May 1, 2025, Plaintiff filed a notice of dismissal of the complaint as to 4610

Peck, LLC.

On

October 13, 2025, the instant request for entry of default judgment was filed.

Discussion

The

City of El Monte seeks entry of default in the following amount: \$4,419,844.70,

consisting of \$4,373,600 in civil penalties and \$46,244.75 in attorney's fees

and costs [Defendant Liao, individually, is hereby assessed a total civil

penalty of \$2,186,800 and Defendant Zhao, individually, is hereby assessed a

total civil penalty of \$2,186,800]. (Proposed Judgment.)

After a review of the papers, the court

seeks supplemental briefing as to why the court should hold Defendant individually liable for the civil penalties rather than jointly and severally. For example, as to the 1st COA, Plaintiff seek that Defendants, each of them individually, are assessed a civil penalty to pay to the City in the amount of \$25,000 pursuant to Health and Safety Code sections 11581(b)(2); as to the 3rd COA that Defendants, and each of them individually, are hereby assessed a civil penalty to pay to the City in the amount of \$180,000 pursuant to El Monte Municipal Code sections 5.18.010, 5.18.040, 5.18.360, 5.18.370, 5.18.380, 1.24.010(A); and as to the 5th COA Defendants, and each of them individually, are hereby assessed a civil penalty to pay to the City in the amount of \$1,981,800, pursuant to Business and Professions Code section 26038(a)(1). After all, the same offense is being committed which is but the very premise of joint and several liability.

Additionally,

Plaintiff has not provided (via a request for judicial notice or in the complaint) the exact and entirety of the various EMCC sections they seek to impose individual liability.

Conclusion

Based

on the foregoing, the court is not inclined to enter judgment against

Defendants each individually but instead jointly and severally. With that, the court asks for supplemental briefing on why judgment should be entered otherwise. The matter is continued to 10/1 at 9 AM; the supplemental brief must be filed by Monday, September 21, 2026.